

ELIZABETH II



1967 CHAPTER xxxii

An Act to amend the Port of London Acts 1920 to 1965; and for other purposes. [27th July 1967]

WHEREAS by the Port of London Act, 1908, the Port of 1908 c. 68.
London Authority were established for the purpose of
administering, preserving and improving the port of London
and for other purposes in that Act set forth:

And whereas by various subsequent Acts and Orders further
powers were conferred on the Port Authority and the Port
Authority have executed various works for the improvement of
the port of London:

And whereas with a view to simplifying the Acts and Orders
relating to the Port Authority it is expedient that certain provisions
relating to the Port Authority should be re-enacted and that
others should be replaced, amended or repealed as by this Act
provided:

And whereas it is expedient that other powers be conferred on
the Port Authority as in this Act contained and that the other
provisions of this Act be enacted:

And whereas the objects of this Act cannot be effected without
the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Port of London Act 1967.

(2) The Port of London Acts 1920 to 1965, the Port of London Act 1964 (Commencement, etc.) Order 1966 and this Act may be cited together as the Port of London Acts and Orders 1920 to 1967.

Interpreta-
tion.

2.—(1) In this Act—

1920 c. clxxiii.

“ the Act of 1920 ” means the Port of London (Consolidation) Act, 1920;

“ the Port Authority ” means the Port of London Authority.

(2) References in this Act to any other enactment shall be construed as references to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

Provisions to
be inserted in
Act of
1920.

3.—(1) The provisions set out in Parts I to VIII of Schedule 1 to this Act shall be inserted in the Act of 1920 in the position indicated at the head of each of the said Parts.

(2) The schedule set out in Part IX of the said Schedule 1 shall be inserted in the Act of 1920 after the Seventh Schedule.

Substituted
provisions in
Act of 1920.

4.—(1) The following provisions of the Act of 1920 are hereby repealed and the respective provisions set out in Part I of Schedule 2 to this Act substituted therefor:—

Section 9 (General duties as to improvement of river and accommodation and facilities);

Section 10 (Power to purchase undertakings);

Section 13 (Port rates on goods);

Section 20 (Exemption of transhipment goods);

Section 109 (Accounts and audit);

Section 125 (Power to maintain depth of water at entrance to docks);

Section 135 (Power to acquire vessels for conveyance of goods);

- Section 136 (Power to provide and maintain canteens etc.);
- Section 185 (Passes for goods to be produced at dock gates);
- Section 205 (Richmond Lock);
- Section 213 (Broken piles etc. to be removed);
- Section 215 (Powers as to dredging ballasting etc.);
- Section 219 (Power to deal with materials fill up creeks etc.);
- Section 220 (Prohibition against dredging without licence of Port Authority);
- Section 423 (Power to enter into traffic arrangements);
- Section 431 (As to obstructions);
- Section 456 (Powers of police as to search and arrest);
- Section 459 (Saving for Crown);
- Section 460 (Saving rights of Crown and Commissioners of Woods).

(2) The following provisions of the Act of 1920 shall be repealed on the 1st November, 1967, and the respective provisions set out in Part II of Schedule 2 to this Act substituted therefor:—

- Section 23 (Payment of port rates by owners of goods);
- Section 24 (Payment of port rates on imported goods);
- Section 25 (Payment of port rates on exported goods);
- Section 26 (Copy of bill to be left with collector);
- Section 27 (Production of documents by masters of vessels);
- Section 28 (Masters of vessels to furnish particulars as to goods to be unshipped);
- Section 29 (Copy of manifest of exported goods to be delivered);
- Section 171 (Copies of manifest of cargo to be delivered to Port Authority).

5. Nothing contained in the Port of London Acts 1920 to Saving for 1965 shall entitle or oblige the Port Authority to instal or use Postmaster apparatus for wireless telegraphy as defined in the Wireless General Telegraphy Act, 1949, in contravention of the provisions of that 1949 c. 54. Act.

6.—(1) The enactments referred to in the first, second and Amendments, third columns of Schedule 3 to this Act are hereby amended as specified in the fourth column of that schedule,

(2) The heading and sub-headings (a) to (g) in Part III of the Act of 1920 shall be omitted, and after Part III the heading "Provisions relating to Charges" shall be inserted.

Repeals.

7.—(1) The enactments referred to in the first, second and third columns of Part I of Schedule 4 to this Act are hereby repealed to the extent specified in the fourth column of that schedule.

(2) The enactments referred to in the first, second and third columns of Part II of Schedule 4 to this Act shall be repealed to the extent specified in the fourth column of that schedule on the 1st November, 1967.

Transitional provisions.

8. Notwithstanding the repeals effected by this Act—

- (a) regulations made by the Minister of Transport under section 109 (Accounts and audit) of the Act of 1920 and in force immediately before the commencement of this Act, shall continue in force and the Minister may revoke, amend or vary the said regulations;
- (b) regulations made by the Port Authority under section 185 (Passes for goods to be produced at dock gates) of the Act of 1920, and in force immediately before the commencement of this Act, shall continue in force and such regulations shall be deemed to have been made under section 185 as re-enacted by this Act;
- (c) byelaws made by the Port Authority under subsection (4) of section 210 (Public right of navigation) of the Act of 1920 and in force immediately before the commencement of this Act, shall continue in force until repealed by the Port Authority;
- (d) a licence issued under section 220 (Prohibition against dredging without licence of Port Authority) of the Act of 1920 and in force immediately before the commencement of this Act shall continue in force and such a licence shall be deemed to have been issued under the said section 220, as re-enacted by this Act;
- (e) a person who, immediately before the commencement of this Act, held office as a constable on the appointment of the Port Authority shall continue to hold that office, and such a person shall be deemed to have been appointed under section 456 (Port authority's police force) as substituted in the Act of 1920 by this Act;
- (f) a person who, immediately before the commencement of this Act, was detained under section 66 of the Metropolitan Police Act, 1839, as applied by subsection (1) of section 456 (Powers of police as to search and arrest) of the Act of 1920 may be dealt with by a court of summary jurisdiction as if the said subsection had not been repealed.

9. All costs, charges and expenses of and incident to the Costs of Act. preparing for, obtaining and passing of this Act shall be paid by the Port Authority out of the port fund as defined in section 8 (Existing deeds contracts etc. to remain in force) of the Act of 1920.

SCHEDULES

SCHEDULE 1

Section 3

PROVISIONS TO BE INSERTED IN THE ACT OF 1920

PART I

PROVISION TO BE INSERTED AFTER SECTION 10

Operation
of Surrey
Canal.

11. The Port Authority may take such action as they consider necessary or desirable for the operation of the Surrey Canal and for the provision, maintenance, operation and improvement of services and facilities in, or in the vicinity of, the Surrey Canal.

PART II

PROVISIONS TO BE INSERTED AFTER SECTION 13

Power to make
certain charges.

1964 c. 40.

14.—(1) The Port Authority may demand, take and recover in respect of any dracone or floating dock, crane rig, drilling rig or other floating plant which is not a ship, as defined by section 57 of the Harbours Act 1964, entering or leaving the limits such charge as they may determine or, if the amount of the charge is disputed by the owner of the floating manufactured article, as is determined by the National Ports Council.

(2) (a) The Port Authority may demand, take and recover in respect of anything done or provided by them or on their behalf such reasonable charge as they may determine.

(b) In this subsection “charge” does not include a ship, passenger or goods due as defined by section 57 of the said Act, or a charge authorised by subsection (1) of this section.

Power to
make regula-
tions as to
charges.

15.—(1) The Port Authority may make regulations—

(a) prescribing the time when a charge falls due for payment to the Port Authority and where and to whom a charge is to be paid;

(b) requiring—

(i) the master, owner or charterer of a vessel or a ship's agent; and

(ii) a person using a service or facility for which the Port Authority may charge and the agent of any such person;

to give to the Port Authority such information as is required by the Port Authority for, or in connection with, the assessment and collection of a charge;

(c) requiring a trader to give to the Port Authority in relation to goods for which he is responsible such information as is required by the Port Authority for, or in connection with, the assessment and collection of port rates;

(d) prescribing the manner in which a return of information required by the regulations is to be made and, if the return is required to be in writing, the number of copies to be provided;

(e) prescribing the time within which the said information is to be provided;

SCH. 1
—cont.

- (f) prescribing the manner in which and the time within which a claim under subsection (2) of section 19 (Exemption from port rates of bunker fuel and certain fish) of this Act and a claim for a return of money overpaid in respect of port rates is to be made and the information and evidence to be supplied by the claimant in support of the claim;
- (g) subject to subsection (1) of section 20 (Exemptions from port rates for goods in transit) of this Act, prescribing the manner in which a claim to exemption from a charge is to be made and the information and evidence to be supplied by the claimant in support of the claim; and
- (h) making such other provision—
 - (i) in relation to the assessment, collection or recovery of charges; and
 - (ii) in relation to claims to exemption from or rebates on charges;
 as the Port Authority consider necessary or desirable.

(2) Regulations made under this section may require the person paying a charge to furnish to the Port Authority a statement as to the rate in the Port Authority's published schedules of charges which is applicable in the circumstances and the sum payable in accordance with that rate.

(3) Regulations made under this section may require payment of a charge or claims for exemption to be made or information to be supplied to a person collecting charges on behalf of the Port Authority under an agreement made between the Port Authority and that person or to some other agent of the Port Authority.

(4) (a) A relevant extract from subsisting regulations made under this section shall be included in each schedule of charges published by the Port Authority.

(b) Copies of the regulations shall be available for sale at the head office of the Port Authority at a reasonable price.

(5) (a) Regulations made under this section shall be binding on all persons concerned unless the Port Authority are in default in complying with the requirements of paragraph (a) of subsection (4) of this section.

(b) The Port Authority may waive the requirements of any of the said regulations.

16.—(1) A person who—

- (a) in response or in purported response to a requirement made on him by regulations made under section 15 (Power to make regulations as to charges) of this Act gives any information or makes a statement which he knows to be false in a material particular; or
- (b) with intent to evade or to enable another person to evade a charge fails within the time prescribed in the said regulations to give information in response to a requirement to do so made on him thereby;

shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding £100.

As to false information and evading payment of charges.

SCH. 1
—cont.

(2) A person who eludes or evades or attempts to elude or evade payment of, or refuses to pay, a charge due from him to the Port Authority shall—

(a) be liable to pay to the Port Authority, in addition to the charge, a sum equal to the amount thereof, which sum shall be a debt due to the Port Authority and shall be recoverable by them in any court of competent jurisdiction; and

(b) be liable on summary conviction to a fine not exceeding £100; notwithstanding the fact that subsequent to the commission of the offence he has tendered or paid to the Port Authority the charge in question.

Arrangements
with Commis-
sioners of
Customs and
Excise.

17.—(1) The Port Authority and the Commissioners of Customs and Excise may enter into any such agreement or arrangement as they think fit to provide for, or to facilitate, the assessment, collection or recovery of charges.

(2) (a) The Commissioners of Customs and Excise may produce to a duly authorised officer of the Port Authority any records or papers in their custody relating to any vessel or goods.

1894 c. 60.

(b) Notwithstanding the provisions of section 64 of the Merchant Shipping Act, 1894, the said Commissioners shall not charge the Port Authority a fee in respect of the inspection by an officer of the Port Authority of a register book kept by them under section 4 of the said Act.

Exemption
from charges
at Richmond
lock and
slipway.

18. No charge shall be made for the use of Richmond lock or slipway—

(a) by trading barges and tugs towing them; or

(b) by a vessel returning through the lock or slipway on the day of its original passage.

PART III

PROVISION TO BE INSERTED AFTER SECTION 20

Exemption
from port rates
for certain
estuary traffic.

1952 c. 44.

21.—(1) Goods imported into the limits from, or exported from the limits to, a coastal place landward of a line drawn from Reculvers Tower in Kent to Colne Point in Essex, or of any line that may be substituted therefor under subsection (3) of section 57 of the Customs and Excise Act, 1952 (in this section called an “intermediate place”), shall be exempt from port rates.

(2) Goods imported to an intermediate place and thence imported into the limits, or exported from the limits to an intermediate place and thence exported without, in either case, having been landed at the intermediate place, shall be considered for the purpose of subsection (1) of this section as imported from or exported to a place seaward of the said line and not from, or to, an intermediate place.

(3) The harbour authority having jurisdiction in an intermediate place shall, if required by the Port Authority, collect port rates and pay them over to the Port Authority and for that purpose shall have all the powers of the Port Authority in relation to the collection and recovery of port rates, other than the power to make regulations under section 15 (Power to make regulations as to charges) of this Act, and shall be entitled to be repaid by the Port Authority any expenses properly incurred by them in the exercise of those powers.

PART IV

SCH. 1
—cont.

PROVISION TO BE INSERTED AFTER SECTION 186

187.—(1) If a person knowingly under-declares the weight of any goods brought into the docks and works, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding £50. Under-declaration of weight of goods.

(2) It shall be a defence to a person charged with an offence under subsection (1) of this section to prove that the safety of persons handling goods in the docks and works was not, or was not likely to be, endangered as a consequence of the under-declaration of the weight of the goods in question.

(3) Where an offence under this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of any director, manager, secretary or other similar officer of the body corporate, or any person purporting to act in any such capacity, he, as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against.

(4) In subsection (3) of this section “director” in relation to any body corporate which is established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking the affairs of which are managed by the members thereof, means a member of that body.

PART V

PROVISION TO BE INSERTED AFTER SECTION 205

206. The Port Authority may—

- (a) lay down, maintain and operate in the Thames—
 - (i) buoys and dolphins;
 - (ii) moorings and devices for the mooring or discharging of vessels;
 - (iii) such cofferdams as are required for or in connection with the exercise by the Port Authority of any of their functions; and
- (b) construct, maintain and operate in the Thames such piers, wharfs and landing places and approaches thereto as they think fit.

Powers as to
buoys, moorings
and works in
the Thames.

PART VI

PROVISION TO BE INSERTED AFTER SECTION 249

250. A person licensed or permitted by the Port Authority under this Act to carry out any work or works including dredging and raising gravel, sand, ballast and other substances in, upon or from any part of the bed of the Thames belonging to Her Majesty or a government department shall, in addition to the licence or permission of the Port Authority, require the consent of the Crown Estate Commissioners on behalf of Her Majesty or of the relevant government department, as the case may be, to carry out the work or works or to dredge and raise gravel, sand, ballast and other substances. Saving rights of Crown Estate.

SCH. 1
—cont.

PART VII

PROVISIONS TO BE INSERTED AFTER SECTION 434

Power to
remove
obstructions.

435.—(1) The Port Authority may remove—

- (a) anything, other than a vessel, causing or likely to become an obstruction or impediment in any part of the Thames (as defined in section 197 (Definitions) of this Act) or in any of the docks, canals, basins, locks or cuts of the Port Authority;
- (b) anything, other than a vehicle, causing or likely to become an obstruction or impediment to the proper use of any towpath on the Thames (as so defined).

(2) (a) If anything removed by the Port Authority under subsection (1) of this section is so marked as to be readily identifiable as the property of any person, the Port Authority shall within one month of its coming into their custody give notice, as required by subsection (5) of this section, to that person and if possession of the thing is not retaken within the period specified in, and in accordance with the terms of, the notice it shall at the end of that period vest in the Port Authority.

(b) If anything removed by the Port Authority under subsection (1) of this section which is not so marked is not within three months of its coming into the custody of the Port Authority proved to the reasonable satisfaction of the Port Authority to belong to any person, it shall thereupon vest in the Port Authority.

(3) The Port Authority may at such time and in such manner as they think fit dispose of anything referred to in paragraph (b) of subsection (2) of this section which is of a perishable nature or the custody of which involves unreasonable expense or inconvenience notwithstanding that it has not vested in the Port Authority under this section, and if it is sold the proceeds of sale shall be applied by the Port Authority in payment of the expenses incurred by them under this section in relation to the thing, and any balance—

- (a) shall be paid to any person who within a period of three months from the time when the thing came into the custody of the Port Authority proves to the reasonable satisfaction of the Port Authority that he was the owner thereof at that time; or
- (b) if within the said period no person proves his ownership at the said time, shall vest in the Port Authority.

(4) If anything removed under this section—

- (a) is sold by the Port Authority and the proceeds of sale are insufficient to reimburse the Port Authority for the amount of the expenses incurred by them in the exercise of their powers of removal; or
- (b) is unsaleable;

the Port Authority may recover as a debt in any court of competent jurisdiction the deficiency or the whole of the expenses as the case may

be, from the person who was the owner at the time when the thing removed came into the custody of the Port Authority or who was the owner at the time of its abandonment or loss.

SCH. 1
—cont.

(5) A notice given under paragraph (a) of subsection (2) of this section—

- (a) shall specify the thing removed and state that upon proof of ownership to the reasonable satisfaction of the Port Authority possession may be retaken at a place named in the notice within the time specified in the notice, being not less than fourteen days after the date when the notice is served;
- (b) may be served by sending it by registered post or recorded delivery service addressed to the person to be notified at his last known place of business or abode in the United Kingdom.

436.—(1) (a) If a vehicle is left without the permission of the Port Authority—

Vehicles
parked at the
docks and
works.

- (i) in a parking place provided by the Port Authority for a longer period than twenty-four hours;
- (ii) in any part of the docks and works where the parking of vehicles is prohibited by notice erected by the Port Authority;
- or
- (iii) in any place where it is likely to obstruct or interfere with the use of the docks and works;

the Port Authority may remove the vehicle to a place of safe custody.

(b) Any such notice as is referred to in sub-paragraph (ii) of paragraph (a) of this subsection shall be conspicuously posted in or in proximity to the place to which it relates.

(2) Where the Port Authority in exercise of the powers of this section remove a vehicle, or use the services of any other person to remove a vehicle, the expenses of and incidental to the removal and safe custody shall be recoverable by the Port Authority from the owner of the vehicle as a debt in any court of competent jurisdiction.

(3) If the Port Authority in exercise of the powers of this section remove a vehicle they shall, if and as soon as it is reasonably practicable to do so, send to the person for the time being registered as the owner of the vehicle for the purposes of the Road Vehicles (Registration and Licensing) Regulations, 1964, or any other regulations having the same effect for the time being in force, at his last known address, his registered address or at the address where the vehicle is ordinarily kept, notice that they have exercised the powers of this section and of the place to which the vehicle has been removed.

(4) A notice stating the general effect of paragraph (a) of subsection (1) of this section shall be displayed in a prominent position at each entrance to any parking place provided by the Port Authority and at each place where a road accessible to vehicles enters any part of the docks and works and shall be endorsed on any tickets issued to persons leaving vehicles in any such parking place or elsewhere on the docks and works.

SCH. 1
—cont.

PART VIII

PROVISION TO BE INSERTED AFTER SECTION 451

Person offending
against byelaws
of the Port
Authority may
be arrested in
certain
circumstances.

452.—(1) A constable may arrest a person—

- (a) who is seen by the constable or by an employee of the Port Authority contravening a byelaw of the Port Authority; and
- (b) whose name and address is not known to the constable and cannot be ascertained.

(2) In this section the expression “byelaw of the Port Authority” includes a byelaw made by a predecessor of the Port Authority which is in force by virtue of subsection (11) of section 8 (Existing deeds contracts etc. to remain in force) of this Act.

PART IX

EIGHTH SCHEDULE

FORM OF DECLARATION FOR A PERSON APPOINTED TO BE A CONSTABLE
IN THE PORT AUTHORITY'S POLICE FORCE

I,
of
do solemnly and sincerely declare and affirm that I will well and truly serve our Sovereign Lady, the Queen, in the office of constable, without favour or affection, malice or ill-will; and that I will, to the best of my power and in the area of my lawful authority as a constable, cause the peace to be kept and preserved and prevent all offences against the persons and properties of Her Majesty's subjects there; and that while I continue to hold the office of constable, I will to the best of my skill and knowledge, discharge all the duties thereof faithfully according to law.

SCHEDULE 2

PART I

Section 4.

SUBSTITUTED PROVISIONS OF THE ACT OF 1920 COMING INTO FORCE AT
THE PASSING OF THIS ACT

General duties
and powers of
the Port
Authority

9.—(1) It shall be the duty of the Port Authority—

- (a) to provide, maintain, operate and improve such port and harbour services and facilities in, or in the vicinity of, the Thames as they consider necessary or desirable and to take such action as they consider incidental to the provision of such services and facilities;
- (b) to take such action as they consider necessary or desirable for or incidental to the improvement and conservancy of the Thames.

(2) The Port Authority shall have power either themselves or by arrangement between themselves and another person to take such action as the Port Authority consider necessary or desirable whether or not in, or in the vicinity of, the Thames—

- (a) for the purpose of discharging or facilitating the discharge of any of their duties, including the proper development or operation of the undertaking;

(b) for the provision, maintenance and operation of—

- (i) warehousing services and facilities;
- (ii) services and facilities for the consignment of goods on routes which include the docks and works;

(c) for the purpose of turning their resources to account so far as not required for the purposes of the undertaking.

SCH. 2
—cont.

(3) Particular powers conferred or particular duties laid upon the Port Authority by the Port of London Acts and Orders, 1920 to 1967, shall not be construed as derogating from each other or from the generality of subsections (1) and (2) of this section.

(4) In this section “the Thames” shall have the same meaning as in section 197 (Definitions) of this Act.

10. The Port Authority may acquire by agreement an undertaking providing or intended to provide services or facilities of a kind which the Port Authority are themselves authorised to provide.

Power to
acquire
undertakings.

13.—(1) In this Part of this Act—

Interpretation
in Part III.

“the Custom House” means the Custom House of the Port of London;

“customs officer” means a person commissioned by the Commissioners of Customs and Excise;

“the limits” means the area within the limits described in the First Schedule to this Act but does not include the places deemed to be within the Port of London referred to in paragraph 2 of that schedule;

“navigation tolls” means dues for the time being charged by the Port Authority on a vessel navigating the Thames westward of London Bridge and based on—

(i) the number of tons of merchandise carried by the vessel; or

(ii) in the case of a vessel not carrying merchandise, the number of tons of merchandise which the vessel is capable of carrying;

“port rates” means, subject to subsection (2) of this section, dues for the time being charged by the Port Authority on goods imported from parts beyond the seas or coastwise into or exported to parts beyond the seas or coastwise from the limits;

“river duties of tonnage” means dues for the time being charged per ton by the Port Authority on the tonnage of a vessel for every voyage trading both in and out of the port of London and for this purpose “tonnage” means—

(i) in the case of a registered British vessel, the register tonnage; and

(ii) in the case of a foreign vessel, the tonnage of the vessel as recognised at the Custom House; and

SCH. 2
—cont.

unless the context otherwise requires—

“charges” includes charges, rates, tolls and dues of every description which the Port Authority are for the time being authorised to demand, take and recover but does not include—

(i) fees charged under section 321 (Fees for lighterman’s and waterman’s licence and list of fares), section 325 (Registration of lightermen and watermen), section 369 (Registers to record mortgages etc. and to be open to inspection) or section 371 (Charges in relation to craft and boats for hire) of this Act;

(ii) fares for the conveyance of persons by land or water; and

(iii) fees charged under section 35 (Fees for inspection of quays for loading or discharging petroleum spirit or dangerous goods) of the Port of London Act, 1935;

and “charge” shall be construed accordingly;

“trader” means—

(i) the owner of imported goods liable to port rates, the consignee of those goods and any person taking delivery of those goods on behalf of the owner or consignee; and

(ii) the owner of goods intended for export which will be liable to port rates, the shipper of those goods and any person shipping those goods on behalf of the owner or shipper.

(2) For the purposes of sections 19 (Exemption from port rates of bunker fuel and certain fish), 20 (Exemptions from port rates for goods in transit), 21 (Exemption from port rates for certain estuary traffic) and 66 (Rates not to be imposed on vessels or goods in certain cases) of this Act, the definition of “port rates” contained in subsection (1) of this section shall have effect as if the words “per ton” were inserted after the word “charged”.

Exemptions
from port rates
for goods in
transit.

20.—(1) (a) Subject to the provisions of this subsection, imported goods which are, as soon as practicable after arrival within the limits, loaded on to another vessel for conveyance to another port, shall be exempt from port rates.

(b) The exemption shall not apply unless the trader or his agent or the owner, master or ship’s agent of the importing or exporting vessel—

(i) within seven days of the arrival of the goods, gives to the Port Authority a certificate that, at or before the time of the report of the importing vessel at the Custom House, or within seventy-two hours thereafter (excluding Sundays and holidays), it was intended that the goods should be conveyed by vessel to another port; and

(ii) immediately the goods have been loaded on the exporting vessel, gives to the Port Authority a certificate that the goods were so loaded as soon as practicable after their arrival within the limits.

SCH. 2
—cont.

(c) A certificate under paragraph (b) of this subsection shall be in such form and contain such information as the Port Authority may require and the Port Authority may extend the time within which the certificate is to be given.

(d) A person who claims exemption under this subsection shall provide the Port Authority with such information and evidence in relation to the claim, in addition to that contained in a certificate given under this subsection, as the Port Authority may reasonably require.

(2) Goods which remain on board the vessel in which they entered the limits and which are conveyed therein to another port shall be exempt from port rates.

109.—(1) The Port Authority shall keep proper accounts and proper records in relation thereto and shall as soon as possible after the end of each financial year prepare a statement of accounts for that financial year. Accounts and audit.

(2) The accounts for each financial year shall be audited by an auditor or firm of accountants appointed by the Minister and within fourteen days after the completion of the audit, the Port Authority shall publish an abstract of the statement of accounts together with the report of the auditor thereon in one or more daily morning newspapers published in the city of London.

(3) A person or firm shall not be qualified to be so appointed an auditor unless he is a member, or in the case of a firm all the partners wherein are members, of one or more of the following bodies, that is to say—

- (a) the Institute of Chartered Accountants in England and Wales;
- (b) the Institute of Chartered Accountants of Scotland;
- (c) the Association of Certified and Corporate Accountants;
- (d) the Institute of Chartered Accountants in Ireland;
- (e) any body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section 161 of the Companies Act, 1948, by the Board of Trade. 1948 c. 38.

(4) “ Financial year ” in relation to the Port Authority includes any accounting period (whether shorter or longer than a year) adopted solely to effect a change in the Port Authority’s financial year.

125. The Port Authority shall not, without the consent in writing of the London Transport Board, carry out any dredging in that part of the dock known as the Eastern dock of the London Docks of the Port Authority which lies over the East London railway tunnel vested in the Board for the purposes of deepening the dock to a level of less than three feet above the top of the structure of the said tunnel. Saving for London Transport Board.

135. The Port Authority may construct vessels for use in carrying out their functions. Power to construct vessels.

SCH. 2
—*cont.*Power to
provide
refreshment
rooms.

1952 c. 44.

136.—(1) Subject to subsection (2) of this section the Port Authority may, in, or in connection with, the docks and works, provide refreshment rooms, canteens and similar facilities.

(2) The Port Authority shall not without the consent of the Commissioners of Customs and Excise provide or operate such facilities at a place within the customs wall or fence at any of their docks where there is a quay which was a legal quay before the commencement of the Customs and Excise Act, 1952, and which has not since that date either ceased to be a legal quay or been the subject of an appointment as an approved wharf under section 14 of that Act.

Passes for
goods.

185.—(1) A member of the Port Authority's police force, or other person appointed by the Port Authority to act as gatekeeper at—

(a) the docks and works; or

(b) any premises specified in a subsisting agreement made under subsection (6) of section 456 (Port Authority's police force) of this Act;

may refuse to allow goods to leave the docks and works or the said premises, as the case may be, unless the person having charge of the goods produces to the constable or other person appointed by the Port Authority as gatekeeper, a pass for the goods signed, in the case of goods leaving the docks and works by an officer of the Port Authority authorised by them for that purpose and, in the case of premises specified in an agreement made under subsection (6) of the said section 456, by a person appointed in accordance with that agreement.

(2) The Port Authority may make regulations relating to the duties of a gatekeeper, the removal of goods from the docks and works or any premises specified in an agreement made under subsection (6) of the said section 456, and the form of pass to be provided under subsection (1) of this section.

Richmond
Lock.

1890 c. ccxxiv.

205.—(1) The Port Authority shall have all the rights and privileges of, may exercise the powers conferred on, and shall be subject to all the obligations imposed upon the Conservators under the Richmond Footbridge, Sluices, Lock, and Slipway Act, 1890.

(2) The Port Authority may maintain and operate the works constructed under section 7 (Power to make works) of the said Act.

Removal of
projections over
the Thames.

213.—(1) In this section—

“projection” means anything which projects over the Thames and includes stairs and any tree, bush or other plant but does not include any such thing authorised by statute to be placed or constructed.

(2) (a) If any projection is a danger to the navigation of the Thames, the Port Authority may remove it and recover the expenses of removal from the owner or occupier of the land on which the projection was situated as a debt in any court of competent jurisdiction.

(b) Before exercising their powers under this subsection the Port Authority shall, if it is reasonably practicable to do so, give notice of their intention to the owner and occupier of the land on which the projection is situated.

(c) In proceedings to recover expenses under paragraph (a) of this subsection the court may inquire whether the Port Authority might reasonably have proceeded instead under subsection (3) of this section and, if the court determines that the Port Authority might reasonably have proceeded instead under the said subsection (3) the Port Authority shall not recover the expenses.

(3) (a) If any projection is an obstruction or inconvenience to the navigation of the Thames but not a danger thereto, the Port Authority may by notice in writing require the owner or occupier of the land on which the projection is situated to remove the projection within such time, not being less than seven days, as may be specified in the notice.

(b) If a person to whom notice is given under paragraph (a) of this subsection fails to comply with the notice within the time stated in the notice, or, if he appeals and the appeal is not allowed, within the time stated in the notice or such other time as the court may substitute therefor, the Port Authority may themselves remove the projection and recover the expenses of removal from the person on whom the notice was served as a debt in any court of competent jurisdiction.

(4) A notice under paragraph (a) of subsection (3) of this section shall have annexed to it a copy of this section and may be served by the Port Authority either by delivering it to the owner or occupier or by sending it by registered post or recorded delivery service addressed to him at his last-known place of business or abode in the United Kingdom or if the owner and occupier are not known to the Port Authority or if their places of business or abode are not in the United Kingdom, by affixing the notice to some conspicuous object or objects on the land.

(5) A person aggrieved by a notice served by the Port Authority under subsection (3) of this section may appeal to a magistrates' court.

(6) This section is subject to the provisions of section 262 (Free public stairs or landing places to be provided in lieu of those taken away by the Port Authority) of this Act.

215.—(1) The Port Authority may cleanse, scour, cut, deepen, widen, dredge, and improve the bed and banks of the Thames, and may take up and remove materials therefrom. Powers to dredge, etc.

(2) Any material so taken up and removed shall (in so far as it is not the property of the Port Authority before being taken up) become the property of the Port Authority on taking up and may be used, sold, deposited or otherwise disposed of as the Port Authority think fit:

Provided that no such material shall be deposited below the level of mean high water springs seaward of a line drawn across the Thames from the London Stone North Level in the Isle of Grain in the county of Kent to the City or Crow Stone opposite Canvey Island in the county of Essex except in such position as the Board of Trade may approve, and subject to such restrictions and conditions as they may impose.

219. The Port Authority may fill up, raise and reclaim creeks, inlets, bends, mud flats, sands and sloblands in and adjoining the Thames and for that purpose may place piles in the Thames and construct groynes, retaining walls and other works in or upon the bed and banks of the Thames: Reclaiming of creeks, etc., and works in connection therewith.

SCH. 2
—cont.

Provided that the Port Authority shall not exercise the powers of this section—

- (a) in relation to any land not owned by them unless they first obtain the consent in writing of the owner thereof; or
- (b) in relation to any part of the Thames in front of or adjoining land belonging to a government department or held in trust for Her Majesty for the purposes of a government department and protected by section 460 (Crown rights) of this Act without the consent in writing of the relevant government department.

Licence to persons other than the Port Authority to dredge, etc.

220.—(1) In this section “dredge” means cleanse, scour, cut, deepen, widen, dredge or remove material from.

(2) Subject to section 250 (Saving rights of Crown Estate) of this Act the Port Authority may upon such conditions as they think fit (including conditions as to variation and revocation of the licence) grant to a person a licence to dredge the bed and banks of the Thames.

(3) A licence of the Port Authority granted under this section shall be valid if signed by a duly authorised officer of the Port Authority.

(4) A person who dredges the bed or banks of the Thames and who cannot show that he is acting under and in accordance with the conditions of a subsisting licence granted under this section shall, without prejudice to any other remedy or proceeding against him, be guilty of an offence and liable on summary conviction to a fine not exceeding £100.

(5) The issue of a licence under this section shall not confer statutory authority for the carrying out of the work covered by the licence.

Arrangements etc., with British Railways Board.

423.—(1) In this section “the board” means the British Railways Board.

(2) The board and the Port Authority may together take such action within their respective powers as they think fit.

(3) The board and the Port Authority may enter into any arrangement or agreement which will in their opinion promote or secure the provision or improved provision of, any service or facility which they may separately provide and without prejudice to the generality of the foregoing provisions of this subsection any such arrangement or agreement may include provisions relating to—

- (a) the use by either party of the facilities or equipment maintained by the other;
- (b) the temporary employment of the staff of one party by the other on secondment or otherwise;
- (c) the charges made in respect of the use of any service or facility to which the arrangement or agreement relates;
- (d) the financing of any project by either or both parties;
- (e) research connected with any existing service or facility provided by either party or in relation to any service or facility under consideration; and
- (f) the joinder in the arrangement or agreement of any other person.

431.—(1) If, in the opinion of the Port Authority, a vessel sunk, stranded or abandoned in any part of the port of London is, or is likely to become, an obstruction, impediment or danger to the safe and convenient navigation or use of the port of London, or part thereof, the Port Authority shall cause the vessel to be raised, removed, blown up, or otherwise destroyed.

SCH. 2
—cont.

Power to raise
and remove
vessels sunk,
etc.

(2) (a) Where the Port Authority have exercised any of their powers under subsection (1) of this section, they may, and if required by the person who is or was the owner of the vessel at the time of the sinking, stranding or abandonment thereof shall cause the vessel or its cargo or anything else associated with the vessel which may be removed or saved from the vessel to be sold in such manner as they think fit and shall out of the proceeds of such sale discharge any sums payable in respect of the property sold by way of duties of customs or excise, or purchase tax, and may retain the expenses incurred by them in the exercise of their powers under this section and also any expenses incurred by them in marking, buoying, watching, lighting or otherwise controlling the vessel or its cargo, in removing or saving the cargo or anything else associated with the vessel, or giving warning to shipping of the presence of the vessel and shall on demand render the overplus, if any, to the person or persons entitled thereto.

(b) In this subsection “duties of customs or excise” include any tax, levy, surcharge or other sum to the collection of which the general provisions of the Customs and Excise Act, 1952, relating to customs or excise have been applied by statute. 1952 c. 44.

(3) If the said proceeds of sale are insufficient, after discharging the said duties or purchase tax, to reimburse the Port Authority for the said expenses the Port Authority may recover the deficiency or if there is no sale, the whole of the expenses from the person who is or was the owner of the vessel at the time of the sinking, stranding or abandonment thereof as a debt in any court of competent jurisdiction.

(4) Except in a case which is, in the opinion of the harbourmaster, a case of emergency, subsection (1) of this section shall not apply in relation to any vessel unless, before exercising in relation to that vessel any of the powers conferred on them by the said subsection, the Port Authority have given to the owner of the vessel not less than forty-eight hours’ notice of their intention to do so; and if before the notice expires the Port Authority receive from the owner counter notice in writing that he desires to dispose of the vessel himself he shall be at liberty to do so, and the Port Authority shall not exercise the powers of the said subsection in relation to that vessel until the expiration of seven days from the receipt of the counter notice and of any further continuous period thereafter during which the owner of the vessel proceeds with the disposal thereof with all reasonable diligence and in compliance with any directions for the prevention of interference with navigation which may be given to him by the harbourmaster.

(5) Notice under subsection (4) of this section to the owner of any vessel may be served by the Port Authority either by delivering it to

SCH. 2
—cont.

him or by sending it to him by registered post or recorded delivery service addressed to him at his last-known place of business or abode in the United Kingdom, or, if the owner or any such place of business or abode is not known to the Port Authority or is not in the United Kingdom, by displaying the notice at the principal office of the Port Authority for the period of its duration.

(6) For the removal of doubt it is expressly provided that nothing in this section shall apply to any vessel belonging to Her Majesty or held by any person on behalf of, or for the benefit of, the Crown.

(7) In this section “ expenses ” shall include an element for depreciation calculated on the straight line method and based on the replacement cost of the vessels, plant and equipment used by the Port Authority for the purposes of raising, removing or destroying the vessel, and a sum representing interest on the capital invested in the said vessels, plant and equipment, and for this purpose the capital invested at the time of the operation shall be deemed to be half the replacement cost.

Port
Authority's
police force

456.—(1) (a) The Port Authority may appoint persons to be constables and a person so appointed shall, on appointment, be attested as a constable by making a declaration before a justice of the peace in the form set out in the Eighth Schedule to this Act.

(b) The Port Authority may suspend or terminate the appointment of a person appointed under paragraph (a) of this subsection.

(c) If the Port Authority terminate the appointment of a person appointed under paragraph (a) of this subsection, that person shall thereupon cease to be a constable.

(d) A constable appointed under this subsection shall be exempt from serving on any jury.

(2) A constable appointed under subsection (1) of this section may act as such—

(a) in the port police area; and

(b) elsewhere in the circumstances described in subsection (3) of this section;

and, whilst he is so acting, he shall have all the powers and privileges of a constable.

(3) A constable who, in the course of his duties as a member of the Port Authority's police force, pursues a person from the port police area, shall have the same powers of arrest in respect of that person outside the port police area as he would have within that area.

(4) (a) A constable may enter and search a vessel within the port police area (taking with him persons to assist him if he thinks it necessary)—

(i) if he, with reasonable cause, suspects that an arrestable offence has been, or is about to be, committed on board the vessel; or

(ii) in order to arrest a person whom he may lawfully arrest; or

(iii) if he, with reasonable cause, believes that by so doing, he will be able to facilitate the detection of an arrestable offence

committed, or the prevention of an arrestable offence which he, with reasonable cause, suspects is about to be committed, within the port police area;

SCH. 2
—cont.

and he may detain anything found on board which he, with reasonable cause, suspects to have been stolen or otherwise unlawfully obtained.

(b) A constable may within the docks and works and any specified premises enter and search a vessel or vehicle if he, with reasonable cause, suspects that anything which has been stolen or otherwise unlawfully obtained—

- (i) on or from the docks and works;
- (ii) on or from a vessel either in a dock of the Port Authority or at a pier provided by the Port Authority; or
- (iii) on or from any specified premises;

may be found therein, and he may detain anything found on board the vessel or in the vehicle, as the case may be, which he with reasonable cause suspects to have been so stolen or obtained.

(5) (a) Where a constable with reasonable cause suspects that an arrestable offence has been committed within the port police area he may within the port police area arrest a person whom he with reasonable cause suspects to be guilty of the offence.

(b) A constable may within the port police area arrest a person who is, or whom he with reasonable cause suspects to be, about to commit an arrestable offence within the port police area.

(c) For the purpose of arresting a person under a power conferred by paragraph (a) or (b) of this subsection a constable may enter and search any place where that person is or where the constable with reasonable cause suspects him to be and a constable may use reasonable force in effecting such an arrest.

(6) The Port Authority may agree with a person or body who owns or has an interest in premises in or in the vicinity of the Thames (as defined in section 197 (Definitions) of this Act) to make available the services of the Port Authority's police force to that person or body.

(7) (a) In this section—

“specified premises” means any premises specified in a subsisting agreement made under subsection (6) of this section;

“port police area” means—

- (i) the docks and works and any place within one mile of the docks and works;
- (ii) any specified premises;

“arrestable offence” means an offence for which the sentence is fixed by law or for which a person (not previously convicted) may under, or by virtue of, any enactment be sentenced to imprisonment for a term of five years.

(b) In subsections (4), (5) and (8) of this section “constable” means a constable appointed under subsection (1) of this section,

SCH. 2
—cont.Police powers
to search and
detain.

(8) No power conferred on a constable by this section shall derogate from, take away or in any way diminish any other power which the constable may have.

459.—(1) A constable may within the port police area (as defined in section 456 (Port Authority's police force) of this Act) stop and search a person whom he, with reasonable cause, suspects of having or conveying in any manner anything which has been stolen or otherwise unlawfully obtained—

- (a) on or from the docks and works;
- (b) on or from a vessel either in a dock of the Port Authority or at a pier provided by the Port Authority; or
- (c) on or from premises specified in a subsisting agreement made under subsection (6) of the said section 456 ;

and may detain that person if he has, or is conveying in any manner, anything which the constable with reasonable cause suspects to have been so stolen or obtained.

(2) A person detained under subsection (1) of this section who is brought before a court of summary jurisdiction charged with having in his possession or conveying in any manner anything which may with reasonable cause be suspected of being stolen or otherwise unlawfully obtained, and who is not able to satisfy the court as to how he came by the same, shall be guilty of an offence and liable on summary conviction to imprisonment for a term not exceeding two months or to a fine of £50.

Crown rights.

460. With the exception of the provisions of this Act relating to dangerous erections and the removal of obstructions, nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular, nothing in this Act shall authorise the Port Authority to take, use or interfere with any land or rights—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those Commissioners on behalf of Her Majesty; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

PART II

SUBSTITUTED PROVISIONS OF THE ACT OF 1920 COMING INTO FORCE ON
1ST NOVEMBER, 1967Time for
payment of,
and persons
liable to pay
charges,
deposit,
guarantee and
right of
detention.

23.—(1) Charges shall be paid at the time specified in relation thereto by the Port Authority in regulations made under section 15 (Power to make regulations as to charges) of this Act or, if no such time is so specified, on demand, and for the purposes of this Part of this Act, a charge shall be deemed to have been demanded when it falls due in accordance with a provision in the said regulations.

(2) (a) Charges on or in respect of a vessel shall be payable by the owner or master of the vessel.

(b) Port rates shall be payable by the trader or, in the case of imported goods, if the trader does not enter the goods at the Custom House, by the person who enters the goods there.

(c) Where a charge payable to the Port Authority may be recovered from more than one person the said persons shall be jointly and severally liable.

(3) The Port Authority may require a person who incurs or intends to incur a charge to deposit with them, or to guarantee, such sum of money as is, in the opinion of the Port Authority, reasonable having regard to the amount or probable amount of the charge and where such a person fails to deposit or to guarantee the sum of money required, the Port Authority may detain any vessel at their docks or any goods on their premises in respect of which the charge has been, or will be, incurred until the requirement has been complied with or the charge paid.

(4) Where a person who has paid, or by agreement with the Port Authority given security for, a charge on or in respect of a vessel or port rates on imported goods, requests a certificate of his having done so for production to a customs officer in order to prevent refusal to receive a report inwards or to grant a clearance outwards under subsection (2) of section 24 (Entry on vessels and refusal of entry or clearance) or refusal to pass an entry under subsection (12) of section 25 (Recovery and enforcement of charges) of this Act, as the case may be, the Port Authority shall give him such a certificate in such form as shall be determined by them.

24.—(1) (a) A duly authorised officer of the Port Authority may at any time board a vessel in their docks, on the Surrey Canal or within the limits to ascertain the charges payable on or in respect of the vessel or on or in respect of goods carried therein and to obtain any other information required for, or in connection with, the assessment and collection of charges.

Entry on
vessels and
refusal of
entry or
clearance.

(b) A master of a vessel who refuses to comply with a reasonable request for information or for the production of a document made by a duly authorised officer of the Port Authority who has boarded his vessel pursuant to paragraph (a) of this subsection shall be guilty of an offence and liable on summary conviction to a fine not exceeding £50.

(2) A customs officer may refuse to receive a report inwards or to grant a clearance outwards to a vessel unless he is satisfied that all charges payable to the Port Authority on or in respect of the vessel have been paid or that a sum of money or guarantee in respect thereof has been deposited with or given to the Port Authority under subsection (3) of section 23 (Time for payment of, and persons liable to pay charges, deposit, guarantee and right of detention) of this Act.

25.—(1) In addition to any other remedy given to them under any enactment, the Port Authority may recover a charge payable to them as a debt in any court of competent jurisdiction.

Recovery and
enforcement of
charges.

SCH. 2
—cont.

(2) If a charge is not paid on demand or at the time specified in relation thereto in regulations made under section 15 (Power to make regulations as to charges) of this Act, as the case may be, the Port Authority may (unless a deposit of a sum of money or guarantee in respect thereof has been given to the Port Authority under subsection (3) of section 23 (Time for payment of, and persons liable to pay charges, deposit, guarantee and right of detention) of this Act)—

- (a) in the case of a charge on or in respect of goods on the premises of the Port Authority, detain the goods;
- (b) in the case of port rates on goods not on the premises of the Port Authority, seize the goods from a vessel in a dock of the Port Authority, on the Surrey Canal or within the limits or from a place within the limits and detain them; and
- (c) in the case of a charge on or in respect of a vessel in a dock of the Port Authority or on the Surrey Canal or within the limits, seize and detain the vessel and its appurtenances.

(3) If goods—

- (a) subject to a charge other than port rates are removed from the premises of the Port Authority at a time when the charge has not been paid; or
- (b) subject to port rates are removed beyond the limits to a place not on the premises of the Port Authority at a time when the port rates have not been paid;

the Port Authority may (unless a deposit of a sum of money or guarantee in respect thereof has been given to the Port Authority under subsection (3) of section 23 (Time for payment of, and persons liable to pay charges, deposit, guarantee and right of detention) of this Act)—

- (i) in the case of the removal of goods covered by paragraph (a) of this subsection, detain any goods which belong to, or stand in the name of, any person liable for the unpaid charge and which are on the premises of the Port Authority, and seize and detain any such goods from a vessel in a dock of the Port Authority, on the Surrey Canal or within the limits; or
- (ii) in the case of the removal of goods covered by paragraph (b) of this subsection, detain any goods which belong to the owner of the goods removed and which are on the premises of the Port Authority, and seize and detain any such goods from a vessel in a dock of the Port Authority, on the Surrey Canal or within the limits.

(4) The Port Authority may after giving not less than seven days' notice—

- (a) in the case of goods detained for a charge other than port rates, to the owner or person in whose name the goods stand in the records of the Port Authority;
- (b) in the case of goods detained for port rates under paragraph (ii) of subsection (3) of this section, to the owner of the goods;

(c) in the case of other goods detained for port rates, to any one person falling within the definition of a "trader" in section 13 (Interpretation in Part III) of this Act; or

(d) in the case of a vessel, to the owner or, if he cannot be ascertained, to the master;

SCH. 2
—cont.

sell any of the goods or the vessel or its appurtenances detained pursuant to subsection (2) or subsection (3) of this section or, if any property detained is in the opinion of a responsible officer of the Port Authority unsaleable, the Port Authority may dispose of the property as they think fit and may recover as a debt in any court of competent jurisdiction from the person or persons responsible to pay the charges in question the expenses of seizure, detention, attempted sale and disposal of the property detained:

Provided that if any goods detained under subsection (2) or subsection (3) of this section are perishable and a responsible officer of the Port Authority is of opinion that it is impracticable to give the notice required by this subsection because the goods will, or may, deteriorate in value during the delay occasioned by the giving of the notice, the Port Authority may sell the goods without giving the said notice but shall as soon as practicable inform the person to whom the notice would have been given of the action being taken.

(5) In selling detained goods which are perishable the Port Authority shall not be required to sell the goods by public auction or to comply with the provisions of subsection (2) of section 497 of the Merchant Shipping Act, 1894, notwithstanding that notice has been given to the Port Authority in relation to the goods under section 494 of the said Act. 1894 c. 60.

(6) If the master of a vessel which is being detained under any provision of this Act removes or attempts to remove the vessel without the written permission of the Port Authority, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding £100.

(7) The proceeds from the sale of any goods or vessel under this section shall be applied in the following order:—

(a) in payment of the expenses of seizure, detention and sale;

(b) in payment of the unpaid charge in respect of which the seizure or detention was effected and of expenses (apart from those referred to in paragraph (a) of this subsection) incurred by the Port Authority in assessing or recovering that charge including the amount of any costs ordered to be paid to the Port Authority under subsection (9) of this section;

(c) in the case of imported goods sold under subsection (4) of this section, if a written claim for unpaid freight in respect of the carriage of those goods in the importing vessel is made on the Port Authority within five days of the sale, in payment of that claim.

(8) (a) If the proceeds of sale are insufficient after deduction of the amount of any duties of customs paid by the Port Authority to reimburse the Port Authority for the expenses which could be deducted under

SCH. 2
—cont.

paragraphs (a) and (b) of subsection (7) of this section the Port Authority may recover the deficiency from the person liable to pay the unpaid charge on account of which the property was sold as a debt in any court of competent jurisdiction.

(b) Any goods or vessel not disposed of by the Port Authority within six months from the date of detention and any surplus proceeds of sale in hand at the end of the said period shall, during a further period of six months, be released by the Port Authority on demand to the person appearing to the Port Authority to be entitled to them, and at the end of the further period any proceeds of sale or goods or vessel not so released shall belong to the Port Authority.

(9) If, when any property has been detained under this section a dispute arises as to the amount of the unpaid charge or the expenses of the seizure or detention of the property, the Port Authority shall not apply any proceeds of sale in payment of the charge or expenses incurred by them until the dispute has been determined by a court of summary jurisdiction, which may make such order as to costs as it thinks fit.

(10) (a) A notice to be given by the Port Authority under this section may be given by sending it by registered post or recorded delivery service addressed to the person to be notified at his last known place of business or abode in the United Kingdom or if any such place of business or abode is not known to the Port Authority or if, in the opinion of a responsible officer of the Port Authority, the property to be sold has been abandoned, a notice shall be displayed at the principal office of the Port Authority for seven days before the sale.

(b) If the owner or master of a vessel cannot be ascertained the notice shall be given by affixing it in a conspicuous position on the vessel.

(11) A duly authorised officer of the Port Authority may, on producing if so required his authority, at all reasonable times enter a vessel or place for the purpose of seizing goods which the Port Authority are authorised to seize and detain under this section.

(12) A customs officer may refuse to pass an entry for imported goods liable to port rates unless he is satisfied that any port rates payable thereon have been paid or that a sum of money or guarantee in respect thereof has been deposited with or security given to the Port Authority under subsection (3) of section 23 (Time for payment of, and persons liable to pay charges, deposit, guarantee and right of detention) of this Act.

Claims for
repayment of
port rates.

26. A person making a claim under subsection (2) of section 19 (Exemption from port rates of bunker fuel and certain fish) of this Act or claiming a return of money overpaid in respect of port rates shall make his claim within the time specified in regulations made by the Port Authority under section 15 (Power to make regulations as to charges) of this Act and, if he fails to do so, the claim shall cease to be enforceable.

Liens for
port rates.

27.—(1) A person who by agreement with the Port Authority collects port rates on their behalf and who pays, or gives security for the payment of, port rates on goods in his possession shall have a lien on the said goods for the amount paid or security given in respect thereof.

SCH. 2
—cont.

(2) A wharfinger or carrier who is not himself liable for the payment of port rates may pay or by agreement with the Port Authority give security for, port rates on goods in his custody and in that event he shall have a like lien on the said goods for the amount of those port rates as he would have in respect of his charges for safe custody or carriage of the goods, as the case may be.

28.—(1) A person in possession of goods in respect of which information relating to the assessment or collection of port rates has been given to the Port Authority pursuant to regulations made under section 15 (Power to make regulations as to charges) of this Act shall give to a duly authorised officer of the Port Authority, on production of his authority, reasonable facilities for weighing, measuring and examining the goods and shall, if so requested, give to such an officer any information he may reasonably require for the purpose of checking or amplifying the information already given to the Port Authority in respect of the goods. Weighing, etc of goods for purposes of port rates.

(2) A person who fails to comply with subsection (1) of this section shall be guilty of an offence and liable on summary conviction to a fine not exceeding £50.

29. An officer of the Port Authority may prevent a vessel from using a pier or landing place provided by the Port Authority, if the master of the vessel refuses to pay the charges for such use. Refusal to pay pier charges.

171.—(1) The master of a vessel loaded or part-loaded which enters the docks and works shall within twelve hours after entering the docks and works or being reported at the Custom House, whichever shall first occur, deliver to the Port Authority two copies of the manifest or report of the cargo of the vessel signed by him. Manifest of cargo to be delivered to Port Authority.

(2) The master of a vessel who refuses or neglects to comply with the provisions of subsection (1) of this section shall be guilty of an offence and liable on summary conviction to a fine not exceeding £5.

SCHEDULE 3

Section 6

ENACTMENTS AMENDED

Act	Section or schedule	Marginal note or heading	Amendment
(1)	(2)	(3)	(4)
Act of 1920	2	Interpretation	(i) After " 2 " the figure " (1) " shall be inserted. (ii) After the definition of " The East and West India Docks " the following definition shall be inserted:— “ ‘ enactment ’ means any Act, whether general local or personal and any order or other instrument made thereunder and any provisions in any such Act, order or instrument”. (iii) For the definition of " land " the following definition shall be substituted:— “ ‘ land ’ includes land covered by water and any interest in land; ”. (iv) For the definition of " The Surrey Canal ", the following definition shall be substituted:— “ ‘ The Surrey Canal ’ means the Grand Surrey Canal and includes such cuts, docks and entrances forming part of the Surrey Commercial Docks as provide passage by water to and from the Surrey Canal; ”.

SCH. 3
—cont.

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Amendment (4)
Act of 1920—cont.			(v) At the end of the section the following subsection shall be inserted:— “ (2) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any other enactment, including this Act.”
	12	Power of Port Authority to acquire land, promote Bills etc.	For subsection (1) the following subsection shall be substituted:— “ (1) The Port Authority may promote and oppose Bills in Parliament ”.
	23	Payment of port rates by owners of goods	After the words “ owner of the goods ” the words “ (which expression whenever used in relation to port rates shall include the shipper and consignee of the goods and any person shipping or taking delivery of the goods on behalf of the owner, shipper or consignee) ” shall be inserted and the words “ in respect of which such rates are payable ” shall be deleted.
	24	Payment of port rates on imported goods	(i) After the word “ collector ” where it first appears the words “ (which expression as used

SCH. 3
—cont.

Act	Section or schedule	Marginal note or heading	Amendment
(1)	(2)	(3)	(4)
Act of 1920—cont.			in relation to the collection of port rates means any collector or officer for the time being authorised by the Port Authority to collect port rates) ” shall be inserted.
			(ii) For the words “ (not being transhipment goods) ” the words “ (not being goods exempted from port rates by section 20 (Exemptions from port rates for goods in transit) of this Act) ” shall be substituted.
	25	Payment of port rates on exported goods	For the words “ other than transhipment goods,” the words “ (other than goods exempted from port rates by section 20 (Exemption from port rates for goods in transit) of this Act) ” shall be substituted.
	63	Docks and works to be open on payment of rates	At the end the following proviso shall be inserted:— “ Provided also that this section shall not be construed as derogating from the power of the Port Authority to discontinue any part of the undertaking.”
	143	Penalty for wilfully cutting moorings	After the word “ unlawfully ” the words “ cast off ” shall be inserted.
	218	Banks may be cut	(i) The words “ cut the banks of the Thames for the purpose of making, enlarging or repairing any dock or canal or any

SCH. 3
—cont.

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Amendment (4)
Act of 1920— <i>cont.</i>			drain, sewer or watercourse or altering, laying down or repairing any suction or other pipe or for any other purpose whatsoever or ” shall be omitted . (ii) For the words “ for any of the purposes aforesaid ” the words “ of the Thames ” shall be substituted.
	228	Prohibition of throwing ballast etc. into river or allowing offensive matter to flow into it	(i) After “ 228 ” the figure “ (1) ” shall be inserted. (ii) At the end of the section the following subsection shall be inserted:— “(2) The Port Authority may remove anything which is near the Thames or on its banks in contravention of subsection (1) of this section or which is in the Thames or on its shore as a result of a contravention of that subsection and may abate or remove annoyances and nuisances in the Thames or on its shore or banks.”
	303	Saving for borough of Southend-on-Sea and urban district of Sheerness	(i) In subsection (1)— (a) the words “ Mooring chains to be put down and maintained ”, “ Private mooring chains may be purchased ”, “ Port Authority may erect piers and landing places ”,

SCH. 3
—cont.

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Amendment (4)
Act of 1920— <i>cont.</i>			“ Notice to be given previously to the erection or licensing of any pier ”, “ Piers to be kept in repair lighted and cleansed ”, “ Free public stairs or landing-places to be provided in lieu of those taken away by the Port Authority ”, “ Port Authority may take tolls from steam-boats using the piers ”, “ Harbour-masters to be approved by Trinity House ”, “ Assistance of harbour-masters in their duties ” and “ Penalty on master for obstructing harbour-master ” shall be omitted. (b) After the words “ particulars painted on boat and ” there shall be inserted the words “ so much of section 206 (Powers as to buoys, moorings and works in the Thames) as empowers the Port Authority to erect piers or landing places or to place mooring chains in the Thames and ”. (ii) Subsection (3) shall be omitted.
Port of London and Midland Railway Act, 1922	3	Application of provisions of Act of 1920	For the words and figures “ 459 and 461 ” there shall be substituted the figures “ 460 ”.
Port of London Act, 1950	28	Recovery of expenses under section 431 of Act of 1920	In subsection (1) for the words “ subsection (1) of section 431 (As to

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Amendment (4)	SCH. 3 —cont.
Port of London Act, 1950—cont.	33	Confirmation of byelaws	obstructions)” the words “ subsections (1) or (2) of section 431 (Power to raise and remove vessels sunk, etc.) ” shall be substituted and for the words “ subsection (1) ” where they secondly occur the words “ subsections (2) and (3) ” shall be substituted. (i) The following subsection shall be inserted after subsection (4):— “(4A) The confirming authority may confirm the byelaws in the form submitted to him with such modifications as he thinks fit: Provided that where the confirming authority proposes to make a modification which appears to him to be substantial, he shall inform the Port Authority and require them to take any steps he thinks necessary for informing persons likely to be concerned with that modification and shall not confirm the byelaws until such period as he thinks reasonable for consideration of, and comment upon, the proposed modification by the	1950 c. xxiii.

SCH. 3
—cont.

	Act (1)	Section or schedule (2)	Marginal note or heading (3)	Amendment (4)
1950 c. xxiii.	Port of London Act, 1950—cont.			Port Authority and other persons who have been informed of it has elapsed.” (ii) In subsection (6) the words “ section 6 (Byelaws as to ships carrying petroleum) of the Port of London Act 1926 ” shall be omitted.
1963 c. xxv.	Medway Conservancy Act 1963	4	Power to regulate navigation, etc., in Medway approach area	In subsection (7)— (a) for the words “ As from the appointed day, the ” the word “ The ” shall be substituted. (b) for the words “ 112 (Power to make and maintain bridges, roads, quays, locks, etc.) ” the words “ 206 (Powers as to buoys, moorings and works in the Thames) ” shall be substituted. (c) for the words “ cease to ” the word “ not ” shall be substituted.
		5	For mutual protec- tion of Conservators and authority	(i) In paragraph (a) of subsection (1) for the words “ Prohibition against dredging without licence of Port Authority ” the words “ Licence to persons other than the Port Authority to dredge, etc. ” shall be substituted. (ii) In paragraph (b) of subsection (1)— (a) for the words “ sunk or stranded ” the words “ sunk, stranded or abandoned ” shall be substituted.

Act	Section or schedule	Marginal note or heading	Amendment	SCH. 3 —cont.
(1)	(2)	(3)	(4)	
Medway Conservancy Act 1963—cont.			(b) for the words “(As to obstructions)” the words “(Power to raise and remove vessels sunk, etc.)” shall be substituted. (iii) In paragraph (c) of subsection (1) for the words “the exercise by the authority in the Medway approach area of their powers under section 112 (Power to make and maintain bridges, roads, quays, locks, etc.) or section 215 (Power as to dredging, ballasting, etc.)” the words “the construction of works by the authority in the Medway approach area or the exercise by the authority in that area of their powers under section 215 (Powers to dredge, etc.)” shall be substituted. (iv) In subsection (2) the words “in the exercise of their powers under the said section 112” shall be omitted.	1963 c. xxv.
Port of London Act 1964	18	As to the purchase, use and disposal of land	(i) In paragraph (a) of subsection (3) after “(a)” the words “Notwithstanding anything in section 63 (Docks and works to be open on payment of rates) or section 127 (Shipowners may resort to any dock) of the Act of 1920” shall be inserted. (ii) Paragraph (c) of subsection (3) shall be omitted.	1964 c. xxxvi.

SCH. 3
—cont.

Act	Section or schedule	Marginal note or heading	Amendment
(1)	(2)	(3)	(4)
1964 c. xxxvi. Port of London Act 1964—cont.			(iii) After subsection (5) the following subsection shall be added:— “(6) For the purpose of the acquisition by the Port Authority of land by agree- ment, the provisions of Part I (other than sections 4 to 8 and section 27 and section 31) and of subsection (3) of section 38 of the Compulsory Purchase Act 1965, shall apply to the exclusion of the Lands Clauses Acts, and as if this Act were mentioned in Schedule 6 to the said Act of 1965.”
1965 c. 56.	19	Application of Town and Country Planning Acts	In subsection (1) after the words “ powers conferred by ” the words “ section 9 (General duties as to improvement of river and accommo- dation and facilities) of the Act of 1920 and ” shall be inserted.

SCHEDULE 4

Section 7

ENACTMENTS REPEALED

PART I

REPEALS TAKING EFFECT AT THE PASSING OF THIS ACT

Act	Section or schedule	Marginal note or heading	Extent of repeal	
(1)	(2)	(3)	(4)	
Richmond Footbridge, Sluices, Lock and Slipway Act, 1890	6	Powers of Richmond Urban Authority and Twickenham Local Board may be delegated to a joint committee	The whole section.	1890 c. ccxxiv.
	7	Power to make works	The whole section.	
	8	Works to be executed according to plans	The whole section.	
	10	Limit of lateral deviation	The whole section.	
	11	Limit of vertical deviation	The whole section.	
	12	For protection of riparian owners	The whole section.	
	13	Period for compulsory purchase of lands	The whole section.	
	17	Power to cross roads	The whole section.	
	18	Period for completion of works	The whole section.	
	19	Power to dredge &c.	The whole section.	
	20	Power to acquire lands by agreement	The whole section.	
	21	Restriction on taking houses of labouring class	The whole section.	
	25	As to Railhead Ferry	The whole section.	
	28	Tolls	Subsection (3).	
	29	Exemptions from tolls on footbridge	The whole section.	

SCH. 4
—cont.

	Act	Section or schedule	Marginal note or heading	Extent of repeal
	(1)	(2)	(3)	(4)
1890 c. ccxxiv.	Richmond Footbridge, Sluices, Lock and Slipway Act, 1890— <i>cont.</i>	30	For protection of Postmaster General	The whole section.
		31	Power to provide toll-gates and toll houses	The whole section.
		39	Penalty for fraudulently passing lock &c.	The words “ through or ”, “ the lock the slipway or ”, “ as the case may be ” and “ or assault obstruct or interrupt any person employed in the collection of the tolls ”.
		40	Toll collector to place his name on toll house	The whole section.
		57	Confirming agreement and saving rights of Crown	The whole section.
		58	Costs of Act	The whole section.
		Second Schedule		The whole schedule.
Act of 1920		6	Port Authority to continue incorporated	In subsection (1) the words “ for the purpose of adminis- tering preserving and improving the Port of London and otherwise ”.
		31	Weight &c. of packing to be included	The whole section.
		34	Payment of port rates not a release from penalties incurred	The whole section.
		36	Agreement with Customs and Excise	The whole section.
		45	Definition of river duties of tonnage and exemptions therefrom	Subsection (1).
		46	Collectors of duties of tonnage to have access to registers of ships at Custom House. Vessels not to be entered	Subsection (1).

SCH. 4
—cont.

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Extent of repeal (4)
Act of 1920—cont.		or cleared at Customs until duties of tonnage paid	
	47	Charges for use of moorings	The whole section.
	48	Definition of navigation tolls and exemptions therefrom	Subsection (1).
	52	Penalty on eluding payment of toll	The whole section.
	53	Charges on vessels at piers and landing places	The whole section.
	59	Power to take rates on goods	The whole section.
	88	Penalties for evasion of payment of rates. Penalties to extend to principals	The whole section.
	92	Port Authority to keep account of rates on vessels	The whole section.
	112	Power to make and maintain bridges, roads, quays, locks, etc.	The whole section.
	123	Power to scour docks	The whole section.
	128	Power to appoint constables	The whole section.
	134	Power of constables to go on board vessels	The whole section.
	158	Saving of Customs	The whole section.
	199	Saving as to river east of Yantlet Creek	The whole section.
	200	Reservation of part of the bed and soil	The whole section.
	201	Sale to Port Authority by Commissioners of Woods of reserved bed of river	The whole section.

SCH. 4
—cont.

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Extent of repeal (4)
Act of 1920— <i>cont.</i>	204	Port Authority may enter on lands to survey &c.	The words “ (other than lands vested in or in trust for or in the occupation of His Majesty of any department of His Majesty’s Government) ”.
	210	Public right of navigation	(i) Subsections (1), (2), (4) and (5). (ii) In subsection (3) the words “ Provided also that notwithstanding anything in this section ”.
	211	As to cutting trees obstructing navigation or towpaths	The whole section.
	214	Penalty for obstructions of towpath	The whole section.
	249	Mooring chains to be put down and maintained	The whole section.
	257	Port Authority may erect piers and landing places	The whole section.
	260	Piers to be kept in repair, lighted and cleansed	The whole section.
	267	Power of harbour-masters	From the words “ Provided always ” to the end of the section.
	285	Bailiffs and servants of Port Authority may be sworn in as constables	The whole section.
	287	Regulations on occasion of assemblage of large crowds	The words “ Subject to the provisions of the next following section of this Act ”.
	288	Police to observe byelaws of Port Authority and directions of their officers	The whole section.

Act	Section or schedule	Marginal note or heading	Extent of repeal	SCH. 4 —cont.
(1)	(2)	(3)	(4)	
Act of 1920— <i>cont.</i>	291	Saving for His Majesty's ships and moorings and for 54 Geo. 3. c. 159	The words "nor shall anything in this Act repeal, alter, prejudice or affect any of the provisions of the Act fifty-four George the Third chapter one hundred and fifty-nine."	
	292	Saving rights of Duchy of Lancaster	The whole section.	
	293	Saving rights of Duchy of Cornwall	The whole section.	
	409	Power for Port Authority to make agreements with certain railway companies	The whole section.	
	424	Tolls on traffic conveyed partly on railway and partly on Great Eastern Railway	The whole section.	
	429	For protection of London County Council	The whole section.	
	445	Through rates in respect of dock railways	The whole section.	
	461	Saving for Crown as to revenue, etc.	The whole section.	
	465	Saving for the London County Council, Metropolitan Water Board, etc.	The words "the Board of Trade".	
	471	Saving for Borough of Southend-on-Sea	The whole section.	
	477	Reservation of general Railway Acts.	The whole section.	

SCH. 4 —cont.	Act	Section or schedule	Marginal note or heading	Extent of repeal
	(1)	(2)	(3)	(4)
1901 c. ccxxviii.	Act of 1920— <i>cont.</i>	The Fourth Schedule		(i) The London and India Docks Company (New Works) Act, 1901— Section 20 (Culverts and works in connection with London main drainage system). Section 22 (Damage to sewers and drainage works of London County Council to be made good). Section 23 (Access to lands in which rising main and works will be situate). Section 24 (Additional cost of pumping &c.). Section 28 (For protection of works of Havering, Dagenham etc. Commissioners of Sewers).
	1917 c. xliv.			(ii) Port of London Act, 1917— Subsections (1), (2) and (13) of section 39 (For protection of London County Council).
1922 c. lxx.	Port of London and Midland Railway Act, 1922	57	Saving for War Office	Subsection (4).
1926 c. l.	Port of London Act, 1926	—	—	The whole Act (so far as it is not already repealed).
1935 c. cxvi.	Port of London Act, 1935	6	Power to make works	The whole section.
		7	Power to deviate	The whole section.

Act	Section or schedule	Marginal note or heading	Extent of repeal	SCH. 4 —cont.
(1)	(2)	(3)	(4)	
Port of London Act, 1935—cont.	8	Power to deepen Royal Victoria and Royal Albert Docks	The whole section.	1935 c. cxvi.
	10	As to swing bridge over Victoria Dock entrance	The whole section.	
	11	For protection of the London Midland and Scottish Railway Company	The whole section.	
	12	Power to remove swing foot bridge	The whole section.	
	13	Power to stop up roads and foot- paths	The whole section.	
	14	Subsidiary works	The whole section.	
	15	Notice to Commissioner of Police	The whole section.	
	16	Sewers or drains to be removed, arched over or filled up	The whole section.	
	17	Alteration of water, gas and other apparatus	The whole section.	
	18	For protection of Postmaster General	The whole section.	
	19	For protection of West Ham Corporation	The whole section.	
	21	Period for completion of new works	The whole section.	
	23	Power to take lands	The whole section.	
	24	Power to acquire additional lands and easements	The whole section.	
	25	Power to acquire part only of certain property	The whole section.	
	26	Period for compulsory purchase of lands and easements	The whole section.	

SCH. 4
—cont.

	Act	Section or schedule	Marginal note or heading	Extent of repeal
	(1)	(2)	(3)	(4)
1935 c. cxvi.	Port of London Act 1935— <i>cont.</i>	27	Correction of errors in deposited plans and book of reference	The whole section.
		28	Incorporation of provisions of existing Acts	The whole section.
		29	Power to sell materials	The whole section.
		30	Extension of time for compulsory purchase of land	The whole section.
		32	Rates etc. on goods conveyed by seaplane	The whole section.
		33	Meaning of “transhipment goods”	The whole section.
S. R. & O. 1945/1094	Port of London Act, 1935 (Extension of Time) Order, 1945	—	—	The whole Order.
S. R. & O. 1947/1145	Port of London Act, 1935 (Extension of Time) Order, 1947	—	—	The whole Order.
1950 c. xxiii.	Port of London Act 1950	19	Amending the rules of the Port of London Authority Pension Fund as respects new entrants	In subsection (2) the words “before attaining the age of fifty years”.
		28	Recovery of expenses under section 431 of Act of 1920.	Subsection (2).
1952 c. ix.	Port of London Act, 1952	—	—	The whole Act so far as it is not already repealed.
1959 c. xxviii.	Port of London Act, 1959	4	Exemption of constables from jury service	The whole section.

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Extent of repeal (4)	SCH. 4 —cont.
Port of London Act, 1959—cont.	5	Amendment of section 52 of Act of 1920	The whole section.	1959 c. xxviii.
Port of London Act, 1962	10	Extension of powers of dock police	The whole section.	1962 c. li.
	12	Swing bridge over Victoria Dock entrance	The whole section.	
	16	Repeals	The words “ The Act of 1952, section 12 (Limiting amount of money to be borrowed) ”.	
	Schedule	Amendment of the Act of 1920	The references in Part I to sections 52, 88, 210, 214 and 220 of the Act of 1920.	
Port of London Act 1963	11	Saving for Crown	The whole section.	1963 c. xxvii.
	Third Schedule	Amendments to Port of London Acts, 1920 to 1962	The reference to section 92 of the Act of 1920.	
	Fourth Schedule	Repeals	The references to section 52 of the Act of 1920 and section 33 of the Port of London Act, 1935.	1935 c. cxvi.
Port of London (Extension of Seaward Limit) Act 1964	7	Saving rights of Crown Estate	The whole section.	1964 c. ii.
	Schedule 2	Amendments to the Port of London Acts, 1920 to 1962	The reference to section 459 of the Act of 1920.	
	Schedule 3	Repeals	The reference to section 215 of the Act of 1920.	
Port of London Act 1964	Schedule 3	Provisions of the Act of 1920 amended	(i) In the reference to section 2 of the Act of 1920, the words “ ‘ land ’ includes an interest in land ”.	1964 c. xxxvi.

SCH. 4 —cont.	Act (1)	Section or schedule (2)	Marginal note or heading (3)	Extent of repeal (4)
1964 c. xxxvi.	Port of London Act 1964—cont.	Schedule 4	Enactments repealed	(ii) The references to sections 9, 10, 109, 128, 185, 215 and 431 of the Act of 1920. The reference to section 12 of the Act of 1920.
1965 c. vii.	Port of London Act 1965	3	Substituted provisions of certain enactments	(i) In subsection (2) the words “Section 47 (Power to charge for use of moorings) ”. (ii) Subsection (3).
		Schedule 1	—	(i) In Part II, the substituted sec- tion 13 (1) (Port rates on goods), subsection (1) of the substituted section 45 (Definition of river duties of tonnage and exemptions therefrom) the substituted section 47 (Charges for use of moorings) and subsection (1) of the substituted section 48 (Defini- tion of navigation tolls and exemptions therefrom). (ii) Part III.
		Schedule 2	Enactments amended	(i) In column (4) the amendment of subsection (1) of section 46 of the Act of 1920. (ii) The reference to section 59 of the Act of 1920.
		Schedule 3	Enactments repealed	In Part I the references to sections 14, 15, 16, 17 and 18 of and the First and Second Schedules to the Port of London Act, 1952.
1952 c. ix.				

PART II

ENACTMENTS TO BE REPEALED ON 1st NOVEMBER, 1967

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Extent of repeal (4)
The Richmond Footbridge, Sluices, Lock & Slipway Act, 1890	28	Tolls	In subsection (2) the words “ and (b) tolls which the Undertakers are for the time being authorised by any enactment to charge in respect of vessels passing through the lock or over the slipway constructed under the said section 7 of this Act;”. 1890 c. ccxxiv.
	32	Tolls to be taken before passing	The words “ or vessel ” and the words “ or through the lock or slipway by this Act authorised ”.
	35	Tolls to be taken by toll collectors	The words “ lock, slipway and ”.
	37	Power to stop persons failing to pay toll and to seize and distrain vessels	The words “ the passage or ” and the words “ and may seize and distrain the vessel in respect of which the toll is payable ”.
	38	Power to sell distress	The whole section.
The Act of 1920	30	Power to distrain goods in case of default	The whole section.
	32	Conditions relating to the payment of port rates	The whole section.
	33	Penalty for evasion of port rates on coastwise goods	The whole section.

SCH. 4
—cont.

Act (1)	Section or schedule (2)	Marginal note or heading (3)	Extent of repeal (4)
The Act of 1920— <i>cont.</i>	35	Persons acting in good faith not liable to penalties	The whole section.
	37	Wharf weights and measurements to be accepted	The whole section.
	38	Owner or master of vessel may pay port rates	The whole section.
	39	Public wharfinger or carrier may pay port rates	The whole section.
	41	Agreements with shipowner or wharfinger for collection of port rates	The whole section.
	42	Recovery of rates paid by shipowner or wharfinger	The whole section.
	43	Port Authority to permit goods to be discharged upon receiving security	The whole section.
	44	Claims for repayment of port rates	The whole section.
	46	Collectors of duties of tonnage to have access to registers of ships at Custom House. Vessels not to be entered or cleared at Customs until duties of tonnage paid	Subsection (2).
	50	How and to whom tolls are to be paid	The whole section.
	51	Masters of vessels to state on request names and addresses of owners and where bound	The whole section.
	54	In case tolls not paid vessels may be prevented from using pier	The whole section.

Act	Section or schedule	Marginal note or heading	Extent of repeal	SCH. 4 —cont.
(1)	(2)	(3)	(4)	
The Act of 1920— <i>cont.</i>	71	How rates may be demanded and taken	The whole section.	
	72	Collector may enter vessel to ascertain rates payable	The whole section.	
	73	Master to report arrival of vessel	The whole section.	
	74	Shippers to give an account of goods intended to be shipped	The whole section.	
	75	Recovery of rates on vessels	The whole section.	
	76	Penalty for removing vessels detained	The whole section.	
	78	Power to detain and sell goods	The whole section.	
	79	Restriction as to time of sale for charges	The whole section.	
	80	Sale of perishable goods	The whole section.	
	81	Application of proceeds of sale	The whole section.	
	82	Power to distrain or arrest goods	The whole section.	
	83	As to recovery of Surrey Canal rates	The whole section.	
	84	Notice of intention to sell vessels or goods	The whole section.	
	85	Landing, weighing etc. of goods in case of difference	The whole section.	
	86	Expenses of landing, weighing etc. of goods	The whole section.	
	87	Settlement of disputes concerning amount of rates or charges occasioned by distress	The whole section.	
	89	Collector of Customs may withhold a clearance to any vessel until rates- are paid	The whole section.	
	194	Power to make byelaws for certain purposes	Paragraph (H).	
	279	Power to make byelaws for the river	The words " For the better collection of duties of tonnage and other charges	

SCH. 4
—cont.

	Act	Section or schedule	Marginal note or heading	Extent of repeal
	(1)	(2)	(3)	(4)
	The Act of 1920— <i>cont.</i>			payable on and for the registration of vessels exceeding forty-five tons registered tonnage navigating the Thames and trading seawards beyond Gravesend but not entered at the office of His Majesty's customs and not exempt by this Act from the payment of duties of tonnage".
1961 c. xli.	Port of London Act, 1961	Third Schedule	Amendment of enactments	In Part I the references to sections 25 and 44 of the Act of 1920.
1962 c. li.	Port of London Act, 1962	Schedule	Amendment of the Act of 1920	In Part I the references to sections 27, 28, 29, 51 and 76 of the Act of 1920.
1963 c. xxvii.	Port of London Act 1963	Third Schedule	Amendments to Port of London Acts, 1920 to 1962	The references to sections 38 and 89 of the Act of 1920.
		Fourth Schedule	Repeals	The references to sections 71, 82, 83 and 87 of the Act of 1920.
1964 c. xxxvi.	Port of London Act 1964	Schedule 3	Provisions of the Act of 1920 amended	The references to sections 24, 25, 27, 28 and 74 of the Act of 1920.
1965 c. vii.	Port of London Act 1965	3	Substituted provisions of certain enactments	In subsection (2) the words "Section 32 (Conditions relating to the collection of port rates)".
		Schedule 1	—	In Part II the substituted section 32 (Conditions relating to the payment of port rates) of the Act of 1920.
		Schedule 2	Enactments amended	The references to sections 24, 25, 26, 29, 46, 54 and 171 of the Act of 1920.



Port of London Act 1967

CHAPTER xxxii

ARRANGEMENT OF SECTIONS

Section

1. Short and collective titles.
2. Interpretation.
3. Provisions to be inserted in Act of 1920.
4. Substituted provisions in Act of 1920.
5. Saving for Postmaster General.
6. Amendments.
7. Repeals.
8. Transitional provisions.
9. Costs of Act.

SCHEDULES:

Schedule 1—Provisions to be inserted in the Act of 1920—

- Part I—Provision to be inserted after section 10.
- Part II—Provisions to be inserted after section 13.
- Part III—Provision to be inserted after section 20.
- Part IV—Provision to be inserted after section 186.
- Part V—Provision to be inserted after section 205.

Part VI—Provision to be inserted after section 249.
Part VII—Provisions to be inserted after section 434.
Part VIII—Provision to be inserted after section 451.
Part IX—Eighth Schedule—Form of declaration for
a person appointed to be a constable in the Port
Authority's police force.

Schedule 2—

Part I—Substituted provisions of the Act of 1920
coming into force at the passing of this Act.
Part II—Substituted provisions of the Act of 1920
coming into force on 1st November, 1967.

Schedule 3—Enactments amended.

Schedule 4—Enactments repealed—

Part I—Repeals taking effect at the passing of this Act.
Part II—Enactments to be repealed on 1st November,
1967.